

Babloo v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 October 2023 · 2023:AHC:204805-DB · WRIT - C No. - 34561 of 2023 · **Writ disposed; 6.14 instalment plea to be decided in two months**

HEADNOTE

A consumer who asks the High Court to permit deposit of quantified electricity dues in instalments is to apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. An application filed within ten days is to be considered and decided within two months, and coercive action stays for two months.

FACTUAL SUMMARY

Babloo approached the Allahabad High Court asking to be allowed to deposit electricity dues of Rs.2,94,914 in instalments. The State of Uttar Pradesh and three others were respondents. Counsel for the Electricity Department stated that the petitioner could go to the Executive Engineer, Electricity Distribution Division, Hamirpur, under clause 6.14 of the U.P. Electricity Supply Code, 2005, and request that officer to fix the instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments of electricity dues

HOLDING

The writ was disposed of on the Electricity Department's submission that instalments are to be sought from the Executive Engineer under clause 6.14. If the petitioner files that application within ten days, it shall be considered and decided within two months, and no coercive action shall be taken against him for two months. The Court did not itself fix the instalments. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court did not fix instalments in the writ. It directed that a clause 6.14 application, if filed within ten days before the Executive Engineer, be considered and decided within two months, with coercive action stayed for two months. ¶ 1

clause-6.14-instalments-on-accepted-dues The petitioner sought to deposit the quantified dues of Rs.2,94,914 in instalments, and the Electricity Department identified clause 6.14 as the provision under which those instalments are to be fixed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS OF THE DUES OF RS.2,94,914 SHOULD BE ALLOWED, AND ON WHAT TERMS

Left to the Executive Engineer, Electricity Distribution Division, Hamirpur, on an application under clause 6.14. ¶ 1